



CHAPTER xci.

An Act to consolidate the existing loans of the Southampton Harbour Board and to empower them to raise further money and to authorise contributions by and agreements with the London and South Western Railway Company and the mayor aldermen and burgesses of the borough of Southampton and for other purposes. A.D. 1903.

[21st July 1903.]

WHEREAS under and by virtue of the Southampton Harbour Acts 1863 to 1900 the management of the port and harbour of Southampton and of the Southampton Pier and Town Quays is vested in the Southampton Harbour Board (in this Act referred to as "the Board") :

And whereas the Board acting under the authority of the said Acts have from time to time improved the said port and harbour and extended the quays and other works connected therewith and have borrowed for those purposes sums of money amounting in the whole to two hundred and eighty-two thousand nine hundred and fifty pounds of which the sum of two hundred and thirty-five thousand four hundred and fifty pounds still remain due and owing :

And whereas it is expedient that the harbour channels and approaches within the limits of the jurisdiction of the Board and also the channel of the Solent at and near Thorn Knoll should be further dredged deepened and improved so as to admit vessels of greater draught to the docks quays and wharves at Southampton including the docks quays and wharves of the London and South Western Railway Company (in this Act referred to as "the railway company") and that the Board should be empowered to borrow further moneys to defray the cost of the said operations and for other purposes of the Board :

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And whereas the moneys borrowed by the Board under the said Acts respectively have different priorities and are repayable at different periods but all such moneys are subject to the right of the Board to repay the same on giving six months notice to the holders of the mortgages and bonds by which the same are secured and to the right of such owners to require repayment on similar notice and it is expedient that the Board should be authorised to exercise their borrowing powers by means of the creation and issue of stock and that their existing loans should be consolidated as hereinafter provided :

And whereas it is expedient that the railway company should be empowered to contribute towards the cost of the dredging operations by this Act authorised and that the mayor aldermen and burgesses of the borough of Southampton (in this Act referred to as "the corporation") should be empowered to contribute towards the cost of improving and reclaiming the western shore of Southampton by depositing thereon the spoil recovered from such dredging and to enter into agreements as hereinafter provided :

And whereas it is expedient that the Board on the one hand and the corporation on the other hand should be empowered to enter into and carry into effect agreements as hereinafter provided with reference to the commutation or suspension of the proportion of the duties payable to the corporation under the provisions of the Southampton Harbour Act 1863 :

And whereas it is expedient that the existing Acts of the Board should be amended in the manner provided by this Act :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title.

1. This Act may be cited as the Southampton Harbour Act 1903 and the Southampton Harbour Acts 1863 to 1900 and this Act may be cited together as the Southampton Harbour Acts 1863 to 1903.

Interpretation.

2. In this Act the several words and expressions to which by the Acts incorporated with this Act or by the Act of 1863 as amended by subsequent Acts meanings are assigned have the same respective meanings unless there be something in the subject or context repugnant to such construction.

3. The Board in addition to the powers conferred upon them by the Southampton Harbour Acts 1863 to 1900 for keeping open the channels in the Southampton Water may dredge deepen and improve the harbour channels and approaches within their jurisdiction to such an extent as may be necessary to provide and maintain a depth of water of not less than thirty-five feet at low water ordinary spring tides and may also dredge deepen and improve the channel of the Solent at and near Thorn Knoll to the extent aforesaid. Provided that before commencing any of the operations by this section authorised the Board shall apply for and obtain the consent in writing of the Board of Trade to such operations.

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Power to
dredge &c.

4.—(1) The railway company may contribute and pay to the Board a sum equal to one half but not exceeding twelve thousand five hundred pounds of the costs and expenses incurred by the Board in dredging deepening and improving the channel of the Solent at and near Thorn Knoll as authorised by this Act ;

Contribution
by railway
company to-
wards cost of
dredging &c.

(2) The railway company may also contribute and pay to the Board such moneys as may be agreed upon between them and the Board towards the costs and expenses of dredging deepening and improving the harbour channels and approaches within the jurisdiction of the Board for the purpose of providing and maintaining the depth of water hereinbefore referred to ;

(3) The railway company may also subscribe towards the last-mentioned purposes such sums as may be agreed upon between them and the Board ; and

(4) For securing any sums so subscribed as aforesaid the railway company may take and hold mortgages bonds stock or other securities of the Board.

5. The corporation may contribute such sum or sums as may be agreed upon between them and the Board towards the costs and expenses incurred by the Board in depositing upon the western shore of Southampton for reclamation or other purposes the spoil recovered from any dredging deepening and improvement carried out by the Board under this Act and any expenses incurred by the corporation with respect to the purposes aforesaid shall be deemed to be expenses incurred under and for the purposes of the Public Health Act 1875.

Contribution
by corpora-
tion towards
costs of
depositing
spoil.

6. The Board and the corporation may enter into and carry into effect agreements with reference to the commutation or suspension of the one-fifth part of the net amount of the duties and other moneys received by the Board and now payable by them to the corporation under the provisions of the Southampton Harbour

Further pro-
visions as to
sums payable
by Board to
corporation.

A.D. 1903. — Act 1863 and such commutation or suspension may be in perpetuity or for a term of years and either in consideration of a sum in gross or a fixed annual payment.

Power to borrow.

7. The Board may borrow on mortgage of their undertaking in addition to any sums which may at the passing of this Act be owing by them on mortgage or bond or which they may by any previous Act be authorised to borrow any sum or sums not exceeding in the whole the sum of one hundred and twenty-five thousand pounds for the purpose of carrying out the objects and purposes of this Act and for other purposes of their undertaking as authorised by the Southampton Harbour Acts 1863 to 1900 and this Act.

Mortgages already granted to have priority.

8. All mortgages and bonds granted by the Board in pursuance of the powers of any Act of Parliament before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages and bonds and subject to the provisions of the Acts under which such mortgages and bonds were respectively granted have priority over any mortgages granted by virtue of this Act.

For appointment of a receiver.

9. Section 19 of the Act of 1900 (For appointment of a receiver) is hereby repealed but without prejudice to any appointment which may have been made or to the continuance of any proceedings which may have been commenced prior to the passing of this Act under that section.

The mortgagees of the Board may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

Prescribing period for repayment of moneys borrowed.

10. All moneys borrowed on mortgage under this Act may be borrowed for any term not exceeding sixty years and such moneys shall be repaid by equal yearly or half-yearly instalments or by means of a sinking fund and for providing such sinking fund the Board shall set apart annually out of revenue such sum as shall in the judgment of the Board of Trade be necessary and such sum shall be deemed to be the prescribed sum referred to in section 84 of the Commissioners Clauses Act 1847 as applicable to the moneys to be borrowed under the powers of this Act.

Board not bound by trusts

11. The Board shall not be bound to see to the execution of any trust whatsoever expressed or implied or constructive to which

a mortgage issued under this Act may be subject and the receipt of the person in whose name a mortgage stands in the register of mortgages or if it stand in the names of more persons than one the receipt of one of the persons named in that register shall from time to time be a sufficient discharge to the Board for any interest payable in respect of such mortgage notwithstanding any trusts to which such mortgage is then subject and whether or not the Board have had notice of such trust and the Board shall not be bound to see to the application of any money paid upon such receipt.

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affecting mortgages.

12. All moneys borrowed by the Board under the authority of this Act shall be applied to the general purposes of the Board as authorised by the Acts of 1863 to 1900 and this Act being in all cases purposes to which capital is properly applicable and the Board may apply to such purposes any moneys authorised to be borrowed under the Acts of 1863 to 1900 but which are not required for the purposes of those Acts.

Application of money.

13. Nothing in this Act shall operate to empower the Board to borrow any loan from the Public Works Loan Commissioners but if the Public Works Loan Commissioners advance any loan to the Board under the Harbours and Passing Tolls &c. Act 1861 and the Acts amending the same—

As to loans by Public Works Loan Commissioners.

(1) Such loan and the security therefor shall not have priority over any loan previously borrowed under this Act or any other special Act or the security therefor except so far as the creditors consent to such priority under the Public Works Loans Act 1875 or otherwise but shall have priority over any loans subsequently borrowed in pursuance of this Act or any special Act and the security therefor; and

(2) The amount which the Board are authorised by this Act or any other special Act to borrow shall be diminished by the amount of any loan borrowed from the Public Works Loan Commissioners under the Harbours and Passing Tolls &c. Act 1861 and the Acts amending the same.

14. The Board may from time to time resolve to pay off or redeem the moneys owing by them on mortgage or bond including any moneys borrowed on mortgage under the authority of this Act (hereinafter referred to as "the mortgage debt") or any portion thereof and for that purpose may raise by the creation and issue of stock in manner by this Act provided to the amount of three hundred and sixty thousand four hundred and fifty pounds.

Board to pay off or redeem existing debt.

15. The Board may from time to time resolve that any portion of the mortgage debt not exceeding an amount to be defined in and

Power to issue stock.

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 — either by agreement with the holders of mortgages or bonds or by
 paying off the same when due and issuing stock of a corresponding
 amount instead of reborrowing the sum so paid off on mortgage or
 bond and the stock when so created shall be termed "Southampton
 Harbour Redeemable Stock."

Power to 16. The Board may raise the whole or any portion of the sum
 raise money of one hundred and twenty-five thousand pounds which they are
 under this by this Act authorised to borrow by the creation and issue of
 Act by stock. Southampton Harbour Redeemable Stock in manner by this Act
 provided.

Stock created 17. All stock at any time and from time to time created
 under this under the powers of this Act and under any subsequent Act subject
 Act to rank to the provisions of any subsequent Act shall rank equally without
 pari passu. any priority or preference by reason of any precedence in the date
 of any mortgage for which any stock is substituted or in the date of
 creation of any portion of stock or in the date of issue of any portion
 of stock or on any other ground whatsoever. Notice of the effect
 of this enactment shall be endorsed on all certificates of stock
 issued under this Act.

Stock to be 18. All stock shall be redeemable by the Board at par that is
 redeemable to say at the rate of one hundred pounds sterling for every nominal
 at par. amount of one hundred pounds stock at such time and in such
 manner as the Board by the first resolution for the creation of stock
 declare and in any case at the expiration of sixty years from the
 date of the first issue of such stock.

Southampton 19. The Board shall create and issue stock under and in
 Harbour accordance with the following provisions (that is to say):—
 stock.

- (1) The stock shall bear such fixed interest as the Board by the resolution creating the same shall determine :
- (2) The interest shall be payable half-yearly on the first day of January and the first day of July or if either of such days fall on a Sunday or a day observed as a public holiday at the Bank of England then on the following day and shall be paid either at the bankers of the Board or at the option of the stockholder by cheque or warrant payable to him or his order at such bankers and sent by post to his last registered address on a day previous to that on which such interest shall become due :
- (3) The interest on the stock shall be a charge on the undertaking of the Board :

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- (4) The Board shall keep a book to be called "the register of Southampton Harbour Stockholders" and in such book shall be fairly and distinctly entered from time to time the names of the several corporations and the names and addresses of the several persons and companies respectively entitled to stock together with the amount of the stock to which such holders shall be respectively entitled and the surnames or corporate names of such holders shall be placed in alphabetical order and every holder (and if such holder be a corporation the clerk or agent of such corporation) may at all convenient times peruse such book gratis and may require a copy thereof or of any part thereof and for every hundred words so required to be copied the clerk of the Board may demand a sum not exceeding sixpence :
- (5) The receipt under the seals or hands as the case may be of the corporations and persons entered in the said register their successors executors administrators or assigns shall be a sufficient and effectual discharge to the Board for any moneys due to such persons and corporations as and when they shall respectively become payable and if any stockholder by reason of infancy or lunacy is unable to give an effectual receipt the receipt in writing of the guardian or committee of his estate shall be in like manner a sufficient and effectual discharge to the Board :
- (6) The stock shall in all respects both at law and in equity be substituted for and represent the securities in exchange for which the same shall be granted as aforesaid and the several parties to whom such stock shall be issued shall be possessed thereof upon the same trusts and subject to the same powers provisions charges and liabilities as those upon and to which their respective securities were immediately before such exchange thereof held and subject and such stock shall accordingly pass or be affected by any deed will or other instrument disposing of or affecting such securities and every such deed will or other instrument disposing of or affecting such securities shall be held to apply to the whole or a proportionate amount of the stock substituted therefor as the case may be :
- (7) The Board shall on demand deliver to each holder of stock a certificate under their common seal stating the amount of stock held by him and the certificate may be in the form in the Schedule to this Act annexed or to the like effect and for such certificate the clerk of the Board may demand any sum not exceeding two shillings and sixpence :

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(8) The certificate of any stock shall be admitted in all courts as *prima facie* evidence of the title of the holder thereof to the stock therein specified :

(9) If the certificate of any stock be worn out or damaged then on its being produced to the Board they may order it to be cancelled and thereupon they shall issue a similar certificate to the person then entitled to the certificate so worn out or damaged or if any such certificate be lost or destroyed then on proof thereof to the satisfaction of the Board and on the giving to them of such reasonable indemnity as they may require they shall issue a similar certificate to the person then entitled to the certificate so lost or destroyed and in either case a due entry of the substituted certificate shall be made in the register of stock and for every such substituted certificate the clerk of the Board may demand any sum not exceeding two shillings and sixpence :

(10) Stock shall be and be transmissible and transferable as personal estate.

Certificate to
be demanded
before inter-
est recover-
able.

20. The Board shall not be bound to pay the interest of any stock until the person entitled thereto shall have demanded a certificate thereof and no interest in arrear and not wrongfully withheld by the Board shall bear interest.

Transfer of
stock.

21. With respect to the transfer of stock the following provisions shall have effect (that is to say) :—

(1) Stock may be transferred in any amount not being less than one pound and every such transfer shall be by deed duly stamped in which the consideration shall be truly stated and such deed may be according to the form in the Schedule to this Act annexed or to the like effect :

(2) The Board shall keep a book to be called the “register of transfers of Southampton Harbour Stock” and every such deed of transfer when duly executed shall be delivered to the clerk of the Board and he shall enter a memorial of every such deed of transfer in such book and shall indorse such entry on the deed of transfer such indorsement to be signed by the clerk and the clerk shall on demand deliver a new certificate to the transferee and for every such entry of a deed of transfer with such indorsement and with or without such certificate may demand any sum not exceeding two shillings and sixpence and on the request of any transferee an indorsement of the transfer to him shall be made on the certificate of the stock transferred instead of a new certificate

being granted and such indorsement being signed by the clerk shall be considered in every respect the same as a new certificate and until such deed of transfer be so delivered to the clerk of the Board the transferee shall not be entitled to receive any part of the interest on the stock transferred : A.D. 1903.

- (3) The Board may close the register of transfers for any period not exceeding fourteen days before the first day of January and the first day of July yearly and any transfer made during the time when that register is closed shall as between the Board and the transferee but not otherwise be deemed made after that time :
- (4) If any stock become transmitted in consequence of the death or bankruptcy of any holder thereof or in consequence of the marriage of a female holder thereof or by any lawful means other than by a transfer according to the provisions of this Act such transmission shall (if so required by the Board) be authenticated by a declaration in writing as by this Act provided and until the transmission be so authenticated any person claiming by virtue thereof shall not be entitled to receive any interest on any part of the stock transmitted :
- (5) Every such declaration shall state the manner in which and the party to whom the stock is transmitted and shall be made and signed by some credible person before a justice or before a commissioner to administer oaths in His Majesty's High Court and such declaration shall be left with the clerk of the Board and thereupon he shall enter the name of the person entitled under such transmission in the register of transfers and for every such entry the clerk may demand any sum not exceeding two shillings and sixpence :
- (6) If the transmission be by virtue of the marriage of a female stockholder the declaration shall contain a copy of the register of such marriage or other particulars of the celebration thereof and shall declare the identity of the wife with the holder of the stock and if the transmission be by virtue of any testamentary instrument or by intestacy the probate of the will or the letters of administration or an official extract therefrom shall with the declaration be produced to the clerk of the Board who shall upon such production in either of those cases make an entry of the declaration in the register of transfers and for every such entry the clerk may demand any sum not exceeding two shillings and sixpence.

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Board not
bound to
regard trusts.

22. The Board shall not be bound to see to the execution of any trust whether expressed or implied or constructive to which any stock may be subject and the receipt of the party in whose name any such stock stands in the said register or of the legal personal representatives of such party shall from time to time be a sufficient discharge to the Board for any money payable in respect of such stock notwithstanding any trusts to which it may then be subject and whether or not the Board have had notice of such trusts and the Board shall not be bound to see to the application of the money paid upon such receipt.

Dividends in
case of in-
fancy &c. of a
joint stock-
holder.

23. Where stock is standing in the name of an infant or person of unsound mind jointly with any person not under legal disability a letter of attorney for the receipt of the dividends on the stock shall be sufficient authority in that behalf if given under the hand and seal of the person not under disability attested by two or more credible witnesses. The Board before acting on the letter of attorney may require proof to their satisfaction of the alleged infancy or unsoundness of mind by the declaration of competent persons under the Statutory Declarations Act 1835 or in such other manner as they may require.

Dividend
warrants by
post.

24. The Board may from time to time make arrangements for payment of dividends on stock by sending warrants through the post. Every warrant so sent by post shall be deemed a cheque within the meaning assigned to the same term in the Crossed Cheques Act 1876.

Effect of
posting a
warrant.

25. Where a holder of stock desires to have his dividend warrants sent to him by post he shall make a request for that purpose to the Board in writing signed by him and in a form approved by the Board and shall give to the Board an address in the United Kingdom or in the Channel Islands or the Isle of Man to which the letters containing the warrants are from time to time to be sent. The posting by the Board of a letter containing a dividend warrant addressed to a holder of stock at his request under this Act at the address given by him to the Board shall as respects the liability of the Board be equivalent to the delivery of the warrant to the said holder of stock himself.

Interest on
stock recover-
able by suit.

26. If the interest of any stock or any part of such interest being payable be not paid upon demand thereof in writing made to the Board by the holders thereof such holders may sue for and recover the same with full costs of suit in any court of competent jurisdiction.

27. If within one month after the interest on any stock or any part thereof has become payable and after demand thereof in writing it be not paid the holder thereof without prejudice to his right to sue for the amount in arrear in any court of competent jurisdiction may if his debt alone amount to the sum of one hundred pounds or if his debt does not amount to that sum he may in conjunction with other stockholders and mortgagees whose debts being so in arrear after demand as aforesaid shall together with his debt amount to the said sum require the appointment of a receiver by an application to be made as in this Act is provided.

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Receiver may be appointed if arrears remain unpaid for time prescribed.

28. Every application for a receiver shall be made to His Majesty's High Court of Justice in the Chancery Division and the said division may if it think fit on such application appoint a receiver on such terms and conditions and with such powers as it may think fit and such receiver shall have the same powers of collecting receiving recovering and applying the moneys liable to the payment of interest on the stock and of assessing raising and recovering all rates for the obtaining of such moneys as the Board or any officer thereof may have and shall apply all such moneys after payment of expenses and costs under the direction of the said Chancery Division for the purposes of and in conformity with this Act. The said Chancery Division may at any time discharge such receiver and shall have full jurisdiction over him and all persons interested in his acts.

Mode of appointment of a receiver.

29. After the conversion of any part of the mortgage debt into stock or after any money shall have been raised by the Board by the issue of stock it shall not be lawful for the Board to issue mortgages or bonds or any other securities for the amount so converted or raised or again to borrow the same but the powers of borrowing by the Board shall to that extent be extinguished.

Restricting exercise of borrowing powers.

30. When any stock has been created and issued under this Act in order to raise any portion of a loan authorised by any previous Act the money raised thereby shall be deemed to have been borrowed under such previous Act and shall be applied for the purposes of such previous Act as amended by this Act.

Application of money raised.

31. If the certificate of any stock bear the common seal of the Board it shall not be necessary for any person or body to enquire whether the moneys mentioned in the certificate are within the borrowing powers of the Board.

Further provisions as to stock certificate.

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Consent of
trustees of
incapacitated
persons &c.
to conver-
sion.

32. Any person who holds any security granted by the Board before the passing of this Act and who is one of the persons enabled by the Lands Clauses Consolidation Act 1845 section 7 to sell land under that Act may in the manner and to the extent in the said section provided consent to any arrangement authorised by this Act for the conversion of such security into stock and to the payment of such security before the time limited for the payment thereof.

Holding of
stock by
trustees.

33.—(1) Trustees or other persons for the time being authorised to invest money in the mortgages debentures or debenture stock of any railway or other company shall unless the contrary is provided by the instrument authorising the investment have the same power of investing that money in Southampton Harbour redeemable stock as they have of investing it in the mortgages debentures or debenture stock aforesaid.

(2) Provided that where two or more persons are successively interested in trust money no investment thereof shall be made in Southampton Harbour redeemable stock at a price above par.

Sinking
fund.

34. With respect to the setting apart of sinking funds the following provisions shall have effect (namely) :—

The Board shall appropriate and set apart as a sinking fund such equal yearly sums of money as will with the accumulations thereof in the way of compound interest at three pounds per centum per annum be sufficient after payment of all expenses to pay off such principal moneys so borrowed within sixty years from the time of borrowing the same and the sums so set apart may be accumulated in the hands of the bankers of the Board and shall be invested from time to time and accumulated in the way of compound interest by investing the same respectively in any securities in which trustees are by law for the time being authorised to invest trust moneys.

Annual re-
turn to Board
of Trade
with respect
to sinking
fund.

35. The clerk to the Board shall within twenty-one days after the expiration of each year during which any sum is required to be paid as an instalment or set apart for a sinking fund under this Act transmit to the Board of Trade a return in such form as may be prescribed by that Board and verified by statutory declaration if so required by them showing the amount which has been paid by instalments or has been invested for the purpose of such sinking fund during the year preceeding the making of such return and the description of the securities upon which the same has been invested and also showing the purposes to which any portion of the moneys

invested for the sinking fund and any interest thereon have been applied during the same period and the total amount remaining invested at the end of the year and in the event of any wilful default in making such return such clerk as aforesaid shall be liable to a penalty of not exceeding twenty pounds. If it appear to the Board of Trade by such return or otherwise that the Board have failed to pay any instalment or to set apart the sum required by this Act for the sinking fund or have applied any portion of the moneys set apart for that fund or any interest thereon to any purposes other than those authorised by this Act the Board of Trade may by order direct that a sum not exceeding double the amount in respect of which such default shall have been made shall be set apart and invested as part of the sinking fund and such order shall be enforceable by writ of mandamus to be obtained by the Board of Trade out of the King's Bench Division of the High Court of Justice.

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36. At their first annual meeting after the passing of this Act and at every subsequent annual meeting the Board shall appoint a professional auditor or two professional auditors who shall continue in office during the pleasure of the Board and the remuneration of such auditor or auditors shall be fixed by the Board and from and after the appointment of such auditor or auditors the provisions contained in sections 92 and 93 of the Commissioners' Clauses Act 1847 shall cease to apply to the Board.

Appoint-
ment of
auditors.

37. Nothing herein contained shall authorise the Board to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to the King's most Excellent Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent such Commissioners and such Board are hereby respectively authorised to give) neither shall anything herein contained extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or enjoyed or exercisable by the King's Majesty.

Saving rights
of Crown.

38. Nothing in this Act contained shall exempt the Board or the port and harbour from the provisions of any present or future general Act relating to harbours docks or piers or to dues on shipping or on goods carried in ships or to pilotage or to lights

Reservation
of general
Acts.

[Ch. xci.] *Southampton Harbour Act, 1903.* [3 EDW. 7.]

A.D. 1903. — buoys and beacons or to the powers and privileges of the general lighthouse authorities or from the future revision and alteration by Parliament of the rates and duties authorised to be taken by the Board.

Expenses of **39.** The Board out of any moneys for the time being in their hands shall pay and discharge all costs charges and expenses incurred in applying for obtaining and passing this Act.

The SCHEDULE referred to in the foregoing Act.

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FORM OF CERTIFICATE OF STOCK.

SOUTHAMPTON HARBOUR REDEEMABLE STOCK.

(Redeemable within sixty years from the first issue.)

Certificate No.

Amount £

Registered No.

This is to certify that

of _____ is registered in the books of the Southampton Harbour Board as the proprietor of £ _____ sterling Southampton Harbour redeemable stock created by virtue of the Southampton Harbour Act 1903 bearing interest at the rate of £ _____ per centum per annum payable half-yearly on the first day of January and the first day of July in each year the first payment to be made on the day of _____ next.

Given under the common seal of the Southampton Harbour Board this _____ day of _____.

NOTE.—This stock certificate must be deposited with the deed of transfer whether for the whole or any portion thereof before a new certificate can be issued in exchange.

All certificates will bear the common seal of the Board.

FORM OF TRANSFER OF STOCK.

SOUTHAMPTON HARBOUR REDEEMABLE STOCK.

(Redeemable within sixty years from the first issue.)

£ _____ of _____ in
I _____ of _____ pounds paid to me by
consideration of the sum of _____ do hereby transfer
of _____ (hereinafter called "the transferee")
to _____ Southampton Harbour redeemable stock
the sum of _____ with all interest due and to become due thereon to hold unto the transferee
his executors administrators and assigns subject to the several conditions on

A.D. 1903. which I hold the same at the time of the execution hereof and I the
— transferee do hereby agree to take the said stock subject to the same
conditions.

As witness our hands and seals this day of
in the year of our Lord one thousand nine hundred and

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